

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 25-07

PKDC, LLC,
Complainant,

v.

COSCO SHIPPING LINES CO., LTD.,
Respondent.

MOTION TO EXTEND SCHEDULING ORDER

Pursuant to Rules 502.69 and 502.102 of the Commission's Rules of Practice and Procedure, Complainant, PKDC, LLC, moves for a 30-day extension of the deadline to complete depositions of fact witnesses from May 5, 2026, to June 4, 2026. On May 4, 2026, undersigned counsel conferred with counsel for Respondent to seek Respondent's consent to this motion. On May 4, 2026, counsel for Respondent stated that Respondent consents to Complainant's motion.

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Complainant submits good cause exists in this instance.

In accordance with the current scheduling order, the parties have exchanged supplemental discovery requests and agreed to exchange responses on May 6, 2026. Completion of fact

witness depositions, however, is not feasible by May 5, 2026, the current deadline. Respondent originally noticed Complainant's deposition within days of the prior fact witness deposition deadline, April 6, 2026; the parties thereafter moved to extend all deadlines by 30 days. After that motion was granted, the deadline was moved to May 5, 2026.

Although the parties originally anticipated that the May 5, 2026 deadline would provide adequate time to conduct depositions, unexpected developments have prevented depositions from occurring within that time. First, Complainant's lead counsel, Mr. Jason M. Kenner, unexpectedly departed undersigned counsel's firm and left the practice of law effective April 13, 2026. Additionally, Mr. Andrew Margolis, also counsel for Complainant, due to serious health issues, has not worked on this matter for some time and is currently unable to assist in representing Complainant. Complainant has thus moved to withdraw both attorneys as counsel. Undersigned counsel, however, is unfamiliar with this matter, and requires additional time to review the case file, prepare a corporate representative for deposition, and depose Respondent's corporate representative.

Second, undersigned counsel has been unable to devote the time necessary to familiarize himself with this case and prepare for depositions due to the unexpectedly heavy press of other matters. These matters include preparing a motion for summary judgment that was due on April 30, 2026, in *Lutron Elecs. Co., Inc. v. United States*, Court No. 22-264 (Ct. Int'l Trade), for which Mr. Kenner was formerly responsible; beginning to draft an initial brief, proposed findings of fact, and appendix in *PKDC, LLC v. CMA CGM S.A.*, Docket No. 24-21, for which Mr. Kenner was also formerly responsible; as well as an unexpected proceeding seeking a temporary restraining order and preliminary injunction in *ICON EV LLC v. United States*, Court No. 26-2759 (Ct. Int'l Trade filed Apr. 13, 2026), which required expedited briefing between

April 13 and 20, 2026, and preparation for and attendance at two in-person hearings on April 21 and 23, 2026, among other things. Additionally, undersigned counsel is getting up to speed on a number of other matters for which Mr. Kenner was formerly responsible, including a number of cases in active litigation at the U.S. Court of International Trade, such as *Tree Island Indus. Ltd. v. United States*, Court No. 25-19 (by agreement of the parties, discovery responses due May 12, 2026); as well as a number of matters that are in settlement negotiations, including *United States v. Iron Mule Prods., Inc.*, Court No. 24-222.

Respondent has now re-noticed Complainant's deposition for May 6, 2026, or one day after the current deadline. In order to accommodate Complainant's corporate representative, who is not available for deposition on May 6, and in order to afford undersigned counsel sufficient time to become familiar with the record, an extension of the fact witness deposition deadline of 30 days, from May 5, 2026, to June 4, 2026, is necessary. Moreover, extending this one deadline will not affect any other remaining deadlines, including the deadlines for expert reports, depositions, discovery, and briefing, and will thus not delay the resolution of this matter.

For these reasons, Complainant respectfully moves that its request to extend the fact witness deposition deadline by 30 days be granted.

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A.

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By: /s/ Luke Mathers
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Dated: May 4, 2026

CERTIFICATE OF SERVICE

I certify that on May 4, 2026, the foregoing submission was served by electronic mail on all counsel of record, in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020, as follows:

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